

Rakesh Kumar Yadav v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 4 July 2022 · Writ-C No. 11977 of 2022 · **Writ disposed; Para 6.8 objection to be decided; recovery stayed.**

HEADNOTE

A writ against recovery of electricity theft dues was disposed of without merits. The consumer was given liberty to file an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks; the distribution licensee must decide it within the next four weeks after hearing. Coercive recovery stands stayed for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

The petitioner challenged a 23 October 2021 recovery notice issued by the power distribution corporation for Rs. 78,141 as electricity theft dues, and sought a restraint on coercive realisation until disposal of his objection dated 25 September 2021. Counsel for the corporation stated on instructions that the petitioner could file an objection against the demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to theft-dues recovery

HOLDING

Without opinion on merits, a writ against recovery of electricity theft dues is disposed of with liberty to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks. If so submitted, the distribution licensee shall decide it in accordance with law within the next four weeks after a reasonable opportunity of hearing. Coercive action on the impugned demand remains stayed for eight weeks or until disposal of the objection, whichever is earlier. ¶ 4-5

FLAG Demand described as theft dues; court directed a Para 6.8 objection without addressing clauses 8.1–8.2.

PRINCIPLE TAGS

alternative-remedy-statutory-appeal-6.8 Writ against theft-dues recovery was disposed by relegating the consumer to a Para 6.8 objection before the distribution licensee, to be decided after hearing, without any merits ruling on the demand. ¶ 4

assessment-6.8-alternate-remedy Challenge to the 23 October 2021 theft-dues recovery was left to the statutory Para 6.8 objection route rather than certiorari on the notice. ¶ 4

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay Liberty to file a Para 6.8 objection within four weeks; if filed, the licensee must decide it within the next four weeks after hearing; coercive action stayed for eight weeks or until disposal, whichever is earlier. ¶ 4-5

pending-objection-to-theft-assessment-6.8 Recovery characterised as electricity theft dues was channelled to a Para 6.8 objection, with a time-bound stay of coercive realisation pending that disposal. ¶ 4-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE THEFT-DUES RECOVERY AND VALIDITY OF THE 23 OCTOBER 2021 NOTICE

Court expressly declined to opine on merits; the distribution licensee is to decide the Para 6.8 objection. ¶ 4

